A SUMMARY OF THE ENTIRE HILCHOT SHABBAT IN 14 CLASSES

The Final Hammer Blow, Fire and Swimming, and Medicine on Shabbat

Class 12 of 14

Series: Laws of Shabbat — a 14-part course

Shiur: 12 of 14

Topic: Makeh Be'Patish (the Final Hammer Blow); Mav'ir and Mechabeh (Fire) — swimming and electricity; Medicine on Shabbat, Part 1 — Pikuach Nefesh

Recorded: Tiferet Eyal, Hendon — 5 March 2019

Schedule note: Asking a non-Jew moved to the final shiur; Muktseh next week.

Recap

Last week: writing and erasing (puzzles, cakes, CCTV), building and demolishing (Lego, cans and bottles, umbrellas).

Part A — Makeh Be'Patish (The Final Hammer Blow)

Completing an object

The last blow that gives a built object its finished form. Any **finishing touch** is forbidden:

- Opening the **stitched-shut pockets** of a new suit.
- Cutting open the **uncut pages** of a new book.
- Threading **shoelaces into new shoes** for the first time (re-inserting laces that came out is fine).
- Stuffing **new feathers** into a pillow (putting back feathers that came out is fine).
- Inflating a **new ball** for the first time (re-inflating a deflated ball, even with a pump, is fine). **Balloons** — no, as you would come to tie them.
- Breaking off a **splinter** from a detached branch to use as a toothpick — you've made a tool.

Repairing

Repairs are also Makeh Be'Patish — e.g. bending back a bent piece of cutlery, oiling a creaking door (WD-40). Q: why may laces and feathers be put back, but repairs not? — Repair is forbidden where it takes **skill and effort**; simply putting something back where it belongs takes none.

Q: Tying a new necktie? — Fine; the tie is already a finished item.

Toveling a utensil on Shabbat

Some say immersing a new food utensil in the mikveh "completes" it. Others: the utensil itself is finished — the need for tevilah is external, a spiritual status. **The Shulchan Aruch permits** toveling on Shabbat (where carrying is permitted). One who wishes to be stringent should do it before Shabbat; if forgotten, **give the utensil to a non-Jew as a gift** and borrow it back — a non-Jew's utensil needs no tevilah (this works indefinitely).

Three rabbinic extensions

1. **Folding clothes on their creases** — in Chazal's time it improved the garment. Fold a **tallit** *against* its creases (not on them) — don't leave it lying around, which is disrespectful. Many have a custom to fold on the creases, since folding today is no professional act; the Shulchan Aruch does say not to, so only with an established custom. No difference whether the tallit is worn only on Shabbat.
2. **Spraying perfume on clothes** — *molid rei'ach*, creating a new scent in the garment. On the body or hair is fine.
3. **Musical instruments** — forbidden, lest one come to repair them. This underlay the 19th-century Reform–Orthodox controversy over a **non-Jew playing an organ** in shul (argued as "shevut deshevut for a mitzvah"); the Chatam Sofer and others opposed it strongly. The same applies to non-Jewish bands at simchas on Shabbat.

Dancing and clapping in rhythm: part of the music decree. The **Rema** permits (today we don't know how to repair instruments) — hence Ashkenazi practice. The **Shulchan Aruch** forbids — for Sephardim: no dancing (lifting the feet, as at a wedding) or clapping to a song. Clapping to wake someone or to quieten shul is fine; walking in a circle isn't dancing. On **Simchat Torah** dancing is permitted. If someone won't accept a well-meant rebuke on a rabbinic matter, the Rema says better to stay silent (*mutav sheyihyu shogegin*).

Part B — Mav'ir and Mechabeh (Kindling and Extinguishing)

Fire was used throughout the Mishkan (e.g. smelting gold). **Driving a car** — the engine combusts — is a Torah prohibition.

Swimming on Shabbat

Open water (sea, lake) — swimming (both feet off the ground) is **forbidden by all**: Chazal feared one would make a float or raft. **Wading** in the sea with your feet on the ground is fine — even up to the neck (not in clothes not made for water).

An enclosed pool — five possible issues:

1. **Squeezing hair** — just don't; wrap a towel round it.
2. **Wringing the swimsuit** — a swimsuit is made to get wet, so wetting it is fine; just don't wring it (or use spin-dryers).
3. **Drying with a towel** — towels are made to get wet; fine.
4. **Carrying** — at an **outdoor** pool in a public area, dry yourself fully before walking around, or you carry the water.
5. **Hot water** — the main issue: Chazal forbade bathing in **hot** water even if heated before Shabbat (people were heating water on Shabbat and claiming otherwise). Hot = above

lukewarm; Chacham Ovadia: about **37°C and below** is lukewarm and permitted — **only if heated before Shabbat**. Water being heated **on** Shabbat (as in many hotels) is forbidden even if lukewarm — check first.

Strict halacha: swimming in an enclosed, lukewarm pool heated before Shabbat is permitted, with those precautions. Whether it suits the **spirit of Shabbat** is another question — for a child on holiday, reasonable; an adult every week, not ideal (though better than sleeping all afternoon). We don't invent new decrees: "if you start forbidding what is permitted, people end up doing what is really forbidden."

- Q: Natural hot springs (e.g. Tiberias, Ein Gedi)? — The Shulchan Aruch discusses the springs of Tiberias: permitted.
- Q: Wet sand? — Walking on it is an unwanted *pesik reisha*, fine; **playing** with wet sand is **Lash**, forbidden.

Hot mikvaot

Many mikvaot are hotter than 37°C (the men's mikveh in Golders Green about 43°C). The **Korban Netanel** (17th century) argues Chazal forbade *bathing*, not *immersion* — a novel view Sephardim prefer not to rely on. So men should use only a lukewarm mikveh on Shabbat morning, and women should preferably immerse on Friday night **before nightfall** (during bein hashemashot).

Electricity

- **Chazon Ish:** completing a circuit is **Boneh** — a major novelty, rejected by many (e.g. Rav Shmuel Wosner).
- **Mav'ir:** scientifically, a closed circuit isn't fire. But an **incandescent (filament) bulb** glows red-hot — Torah-level Mav'ir.
- **Makeh Be'Patish:** completing a functional circuit — some forbid even LEDs on this basis.
- **Chacham Ovadia:** electricity (apart from glowing filaments) is **rabbinic** — very important for when a non-Jew may be asked, and for dimming an LED.
- Q: Ashkenazim who ask a non-Jew to switch on a light? — Two separate issues: *instructing* a non-Jew and *benefiting* from his work. Even for Sephardim, one may not explicitly ask for a light where there is no existing light; details in the final shiur.

Part C — Medicine on Shabbat, Part 1

Why medicine is restricted

Historically medicines were herbal and had to be **ground**. People anxious about their health (*adam bahul al gufo*) might grind herbs on Shabbat, so Chazal made a blanket decree against medicine for minor ailments. Today almost all medicine is ready-made and few know how to compound remedies — the **Chayei Adam** argues the decree no longer applies. We do not follow him, but his view is an extra factor for leniency in some cases. Five levels of illness — next week.

Pikuach nefesh — danger to life

Where there is **any** possibility of danger to life, one is **obligated** to break Shabbat.

Rav Chaim of Brisk, famously strict, told a congregant who felt faint on Yom Kippur to eat. Challenged on his "leniency", he replied: *I'm not lenient — I'm stringent about the mitzvah to guard life.* Breaking Shabbat for pikuach nefesh is a stringency, not a leniency.

- Applies to any physical danger, for Jews and non-Jews alike.
- **Mental health** too: a young child locked in a toilet, crying and panicking — one may break even Torah prohibitions (call the fire brigade, break the door), since the trauma can last a lifetime.
- A rabbi who hasn't taught his community this is responsible if someone hesitates and harm results.
- **With a shinui?** The Rema: if there is no rush, do it with a deviation (e.g. dial with the weaker hand). The **Shulchan Aruch** — which we follow: **no need for a shinui**; and never where it endangers others (e.g. driving). (Childbirth is different — final shiur.)
- **Jew, not non-Jew:** even if a non-Jew is present, it is **better done by a Jew** — it is taken more seriously, and shows how important pikuach nefesh is. The quicker, the greater the reward.
- **Maggid Mishneh:** for a patient in danger, Shabbat is overridden even for needs not directly medical — e.g. switching on music he asks for — since a stronger spirit helps the fight against illness.

Postscript — a sukkah roof in the rain

Pulling a cover over the sukkah when it rains on Shabbat creates a tent unless it was already open at least a tefach before Shabbat.

Summary

- **Makeh Be'Patish:** no completing objects (new pockets, pages, laces, balls) or repairs; toveling permitted (or gift it to a non-Jew); fold a tallit against its creases; no perfume on clothes; no instruments; Sephardim don't dance or clap to music.
- **Swimming:** never in open water; an enclosed lukewarm pool heated before Shabbat is strictly permitted (don't squeeze hair or swimsuit, dry before walking outdoors) — consider the spirit of Shabbat. Avoid hot mikvaot on Shabbat.
- **Electricity:** per Chacham Ovadia rabbinic, except glowing filaments.
- **Pikuach nefesh:** an obligation, including mental health; no shinui needed; better done by a Jew.

Coming Up

Shiur 13 — 12 March: Completing medicine on Shabbat (the five levels of illness), then **Muktseh**. Final shiur: children, babies and childbirth, and asking a non-Jew.

B'Ezrat Hashem

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